

SENATE No. 289

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce E. Tarr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act ensuring internet security and privacy.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	
<i>Peter J. Durant</i>	<i>Worcester and Hampshire</i>	<i>3/17/2025</i>
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>12/2/2025</i>

SENATE No. 289

By Mr. Tarr, a petition (accompanied by bill, Senate, No. 289) of Bruce E. Tarr for legislation to ensure internet security and privacy. Consumer Protection and Professional Licensure.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 218 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act ensuring internet security and privacy.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 93 of the General Laws, as appearing in the 2022 Official Edition, is hereby
2 amended by inserting after section 114 the following section:-

3 Section 115. Notwithstanding any other general or special law to the contrary, no
4 telecommunications or internet service provider that has entered into a franchise agreement,
5 right-of-way-agreement, or other contract with the commonwealth of Massachusetts or a political
6 subdivision, or that uses facilities that are subject to such agreements, even if it is not a party to
7 the agreement, or otherwise operates in the commonwealth of Massachusetts may collect, use,
8 disclose or otherwise disseminate, personal information from a customer resulting from the
9 customer's use of the telecommunications or internet service provider without express written
10 approval from the customer. No such telecommunication or internet service provider shall add an

11 additional surcharge for customers that do not provide their express written approval, and said
12 providers shall not refuse to provide services to a customer on the grounds that the customer has
13 not approved collection, use, disclosure or other forms of dissemination of the customer's
14 personal information".